CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
Monday, March 4, 2019
6:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 6:00 p.m. on Monday, March 4, 2019 in the Auditorium at Sherbondy Village, 215 President Barack Obama (Perviz) Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. PUBLIC INPUT:
Agenda Items Only

Mayor Pigatt said that he is removing resolution item 7(f).

Marc Cooper, 6801 SW 75th Terrace, Miami, FL, said the commission should consider that if Mr. Brown is hiring outside attorneys to defend cases for the City, then he is receiving a portion of these funds (around twenty percent). Before the late Commissioner Pinder's accident, he was willing to negotiate the agreement with Mr. Brown and it did not go through. Now three (3) years later, the City is being strong armed into paying this exorbitant settlement. This should not happen.

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, thanked Attorney Stephen Johnson for providing a report at the commission meeting last week regarding the attorney's contract. She asked the mayor if he was going to appoint Mr. Johnson as interim city attorney for the City being that he campaigned on his behalf, is a part of the 100 Black Men of South Florida organization which the mayor is a part of, and also his friend; this is a conflict of interest. If she

was him she would stray away from anyone with ties that would later come back to haunt him. She informed Mr. Johnson that this was nothing personal and simply business.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL said that she is confused because she thinks she has observed a waste of tax payers dollars form October until now. She said the commission is not practicing what they preach. After a while the league will drop the City as a result of the decisions of the commission.

Eric Redmon, 2766, Opa-locka, FL, said he is confused with the resolution regarding the attorney because there are so many of them. It does not sound like the commission knows what it wants to do. He also said if the commission is going to remove an item from the agenda, they should let the public know beforehand. He came in support of the clerk and would not have made the trip had he known the item regarding her position would be removed.

Shalonda Rivers, 13875 NW 22nd Place, #116, Opa-locka, FL, (inaudible).

6. DISCUSSION ITEMS:

a) Accepting the settlement agreement with The Brown Law Group to be terminated after three (3) months with the release payment being paid in four (4) installments
b) Appointing an Interim City Attorney if a settlement is not reached

Mayor Pigatt said at the last meeting, an independent council was brought in to advise the commission on matters regarding the attorney's contract. Now is a critical time for discussion as the city attorneys contract is set to expire on tomorrow.

Commissioner Kelley said he is concerned with the current attorney's involvement with matters directly related to him. He is also concerned about the settlement that was mentioned at the last meeting and wanted to make that known as there needs to be someone sitting in the attorney's seat if a settlement is not reached.

Mayor Pigatt asked the clerk when items for a special meeting can be submitted to the clerk's office.

City Clerk Flores said there is no time and nothing in the charter or code for a deadline, however, the meeting has to be noticed within twenty four hours of the actual meeting.

7. RESOLUTIONS:

a) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE SECOND AMENDED AGREEMENT WITH THE CITY ATTORNEY, THE BROWN LAW GROUP, LLC; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

The above resolution was read by Attorney Brown.

It was moved by Mayor Pigatt.

The motion died for the lack of a second.

b) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING A SEVEN MONTH EXTENSION OF THE CURRENT AGREEMENT WITH THE CITY ATTORNEY, THE BROWN LAW GROUP, LLC; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said he motioned it for clarity on why it has to have a seven month extension.

Attorney Stephen Hunter-Johnson of Lydecker Diaz, 170 NE 159th Street, North Miami, FL, said Section 3 explains what is being asked and that is what was negotiated. It requires three (3) months of actual duties and four (4) months of severance. It provides flexibility with The Brown Law Group and any attorney that may come in.

Commissioner Kelley said the language in the actual resolution is different from what Mr. Johnson is saying now and that is a concern.

Mayor Pigatt said the City is at this point because the previous commission approved a second amendment from The Brown Law Group. On December 12, 2019 the Chief Inspector General sent a letter stating that the second amendment was not approved. Mr. Brown responded by stating that the state response would be considered a breach of contract. An RFP was then put out to hire a city attorney and then the attorney was retained as independent counsel to assist the City; a decision needs to be made tonight.

Attorney Johnson said as long as the City maintains its part of the agreement then there should not be a conflict.

Mayor Pigatt asked Mr. Johnson if the item can be voted on tonight.

Attorney Johnson said, "Yes."

Commissioner Kelley said he still has concerns about the language in the resolution.

Vice Mayor Davis said he supports the item as long as no extra funds are expended.

Commissioner Bass said she hopes they can receive what they need before three months through the RFP.

Commissioner Kelley said he wants the language that was read as a part of the document and he will support it. It will not change any funds, but it will provide clarity.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes

Commissioner Bass	Yes
Mayor Pigatt	Yes

c) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TERMINATING THE AGREEMENT WITH THE CITY ATTORNEY, THE BROWN LAW GROUP, LLC; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

This item was withdrawn by the sponsor.

d) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPOINTING AN INTERIM CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

This item was withdrawn by the sponsor.

e) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO INCREASE THE CITY ATTORNEY'S BUDGET BY $90,000.00 IN THE UPCOMING PROPOSED BUDGET AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said he wanted to clarify that the funds were based on the settlement for the attorney which was not budgeted; monies should be set aside especially in the event of an overlap of attorneys.

Acting Manager Daughtrey agreed that the funds should be made available to cover the current attorney's agreement.

Commissioner Kelley asked that it be included in the budget amendment so there are no issues moving forward.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

f) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO INCLUDE $50,000.00 IN THE UPCOMING PROPOSED BUDGET AMENDMENT TO CONDUCT A NATIONAL SEARCH FOR A CITY MANAGER AND A CITY CLERK; PROVIDING FOR

INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.
Sponsored by Mayor Pigatt

This item was removed by the sponsor.

9. ADJOURNMENT:

There being no further business to come before the Commission, it was moved by Commissioner Kelley, seconded by Vice Mayor Davis to adjourn the meeting adjourned at 7:17 p.m.

MAYOR

ATTEST:

CITY CLERK